

# 19STCP01172 19STCP01172

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 19STCP01172 Hearing Date: August 10, 2026 Dept: 26

TENTATIVE

RULING:

Judgment

Creditor Marius Denisiu's Motion for Imposition of Penalties is denied.

Analysis:

On April 10, 2019, the Court entered judgment in favor of Marius Denisiu ("Judgment Creditor") and against Executive Network Enterprises, Inc. dba Executive Limousine ("Judgment Debtor ENE") pursuant to an Order, Decision or Award of the Labor Commissioner.

On September 4, 2024, Judgment

Creditor filed a Motion to Amend Judgment. Following full briefing and oral argument by the parties, the Court took the matter under submission. (Minute Order, 10/24/24.) On October 31, 2024, the Court granted the Motion to Amend Judgment by adding Patricia Stephenson ("Judgment Debtor Stephenson") and Stori Bolton as additional judgment debtors. (Minute Order, 10/31/24.) On March 4, 2025, the Court granted Judgment Debtors' Motion for Reconsideration as to Stori Bolton, but denied it as to Judgment Debtor Stephenson. (Minute Order, 03/04/25.) The amended judgment was entered on April 14, 2025.

Judgment Debtor

Stephenson filed a Motion to Vacate Judgment on October 1, 2025 and a Motion to Vacate and Dismiss Amended Judgment on October 7, 2025. On October 28, 2025, the Court denied both Motions to Vacate. (Minute Order, 10/28/25.) Judgment

Debtor Stephenson filed a Motion for Reconsideration on November 24, 2025, which the Court denied on January 22, 2026. (Minute Order, 01/22/26.) On January 8, 2026, the Court granted the Order to Show Cause Re: Why the Court Should Not Enter an Order For Sale Regarding 4764 La Villa Marina #H, Marina Del Rey, CA 90292 to Satisfy the Judgment in this Case. (Minute Order, 01/08/26.) The Order for Sale was signed and entered on January 27, 2026.

On February 25, 2026, Judgment Debtor Stephenson filed a Notice of Appeal with respect to the Order for Sale signed on January 27, 2026. (Notice of Appeal, 03/10/26.) The Court denied Judgment Debtor Stephenson's Ex Parte Application for 30 Day Continuance and Temporary Stay of Enforcement of Order for Sale on March 5, 2026. (Minute Order, 03/05/26.) Stephenson then filed a Substitution of Attorney on March 27, 2026, substituting out Attorney Brad Axelrod and indicating she is self-represented. On April 15, 2026, the Court denied Judgment Debtor Stephenson's Ex Parte Application to stay Sheriff's Sale. (Minute Order, 04/15/26.) On April 16, 2026, the Appellate Division issued an opinion dismissing Judgment Debtor ENE's appeal of the judgment. (Opinion, 04/16/26.)

#### Judgment

Creditor filed the instant Motion for Imposition of Penalties on May 8, 2026. Judgment Creditor filed a Memorandum of Costs After Judgment on June 4, 2026. On June 9, 2026, the Court granted Judgment Creditor's Motion for Assignment Order. (Minute Order, 06/09/26.) Judgment Debtor Stephenson filed an opposition to the instant Motion on July 29, 2026 and Judgment Creditor replied on July 31, 2026.

#### Discussion

Judgment Creditor moves to impose penalties pursuant to Labor Code section 238.05 and Civil Code section 3345. Initially, the Court notes that the Motion does not specify against whom the penalties should be assessed: Judgment Debtor Stephenson, Judgment Debtor ENE, or both. (Motion, p. 1:14-22.)

Labor Code section 238.05 states in relevant part: "If a final judgment arising from nonpayment of wages for work performed in this state remains unsatisfied after a period of 180 days after the time to appeal therefrom has expired and no appeal therefrom is pending, the judgment debtor shall be subject to a civil penalty not to exceed three times the outstanding

judgment amount, including postjudgment interest then due . . . .” (Lab. Code, § 238.05, subd. (a).)

In opposition, Judgment Debtor Stephenson argues that the statute went into effect on January 1, 2026 and all the necessary preconditions to its application occurred in 2025, before its effective date. As the opposition points out, statutes generally only operate prospectively. (*Myers v. Philip Morris Companies, Inc.* (2002) 28 Cal.4th 828, 840. Retroactive application of a statute occurs only if the language expressly provides for retroactivity, or other sources provide a clear and unavoidable implication that the Legislature intended retroactive application. (*Ibid.*) If the statute is ambiguous as to retroactive application, the statute will be construed to apply prospectively. (*Ibid.*)

Here, Section 238.05 provides that it applies if “a final judgment arising from nonpayment of wages for work...remains unsatisfied after a period of 180 days after the time to appeal therefrom has expired and no appeal therefrom is pending....” (Lab. Code, § 238.05, subd. (a).) As Judgment Debtor Stephenson points out, the amended judgment was served on Judgment Debtors on April 15, 2025 from out of state, making the deadline to file an appeal June 4, 2025 (30-day deadline to appeal, plus 10-days for mailing from out of state). (Cal. Rules of Court, rule 8.822; Code Civ. Proc., § 1013, subd. (a).) 180 days after June 4, 2025 was December 1, 2025. The triggering event as described under the moving statute, therefore, occurred before the statute’s effective date. The Court would have to find that the statute applies retroactively in order to impose sanctions based on those events.

Judgment Creditor's reply does not address this argument at length. It argues that statutes often include limiting language restricting dates of enforcement and provides the example of Code of Civil Procedure section 683.120, which specifies that applications to renew judgments may not be filed “if the judgment was renewed on or before December 31, 2022.” (Reply, p.2 (quoting Code Civ. Proc., § 683.120). Judgment Creditor appears to suggest that the absence of a date in Section 238.05 is sufficient for the Court to infer that the legislature intended to permit retroactive imposition of the penalties at issue here. The Court is not convinced. Section 238.5 “changes the legal consequences of past conduct” – failure to satisfy a judgment within 180 days after the time to appeal and with no appeal pending – by “imposing new or different liabilities on that conduct.” (*Elsner v. Uveges* (2004) 34 Cal.4th 915, 936–937 (citations omitted).) When that is the case, “an express

legislative intent to permit .... retroactive application" is required. (Id.)

Plaintiff's inference from the absence of a cut-off date, as used in a different statute, does not establish such an intent, nor does the language of Section 283.05 otherwise make one "express."

Therefore, the request for penalties under Labor Code section 238.05 is denied.

Judgment Creditor alternatively moves for penalties under Civil Code section 3345, which applies only to actions brought to "redress unfair or deceptive acts or practices or unfair methods of competition." (Civ. Code, § 3345, subd. (a).) In neither the moving nor reply papers does Judgment Creditor engage with this specific language to explain how the proceeding before the Labor Commission amounts to an action to "redress unfair or deceptive acts or practices or unfair methods of competition." Therefore, Judgment Creditor has also not shown that penalties pursuant to Civil Code section 3345 can be awarded in this action. The Court also agrees with Judgment Debtor Stephenson that the Motion's single unsupported assertion that Plaintiff is now 73 years old is insufficient to make the showing required under Civ. Code, § 3345, subd. (b). (See id. (requiring the Court to make "affirmative findings.")).

Conclusion

Judgment

Creditor Marius Denisiu's Motion for Imposition of Penalties is denied.

Judicial Assistant to give notice.